

TENTATIVE RULING

Case: **Belfor USA Group, Inc. v. Tilden-Lafayette, LLC et al.**
Case No. CV2025-1734

Hearing Date: **March 25, 2026** **Department Fourteen** **9:00 a.m.**

Cross-defendant Greystar Management Services, LLC's ("cross-defendant") request for judicial notice is **DENIED**. (Evid. Code, §§ 452, subd. (h), 453.) The document is not relevant to the Court's determination of this motion. (*People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Cross-defendant's demurrer to the first cause of action for breach of contract as alleged in cross-complainants Tilden-Lafayette, LLC and The U Davis, LLC's (collectively, "cross-complainants") cross-complaint is **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that cross-complainants fail to state facts sufficient to constitute this cause of action based upon breach of contract. (*Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821 [the elements of breach of contract are: (a) the existence of the contract, (b) plaintiff's performance or excuse for nonperformance, (c) defendant's breach; and (e) the resulting damages to the plaintiff].) Specifically, cross-complainants fail to set out the contract verbatim, incorporate an attached copy, or plead the written contract according to its legal effect. (*McKell v. Washington Mutual, Inc.* (2006) 142 Cal.App.4th 1457, 1489; see also 4 Witkin, Cal. Procedure (4th ed. 1997) Pleading, §§ 479-480, pp. 572-573; Cross-Complaint ¶¶ 1-9).

Cross-complainants may file an amended cross-complaint by no later than April 6, 2026 (within 10 days after the hearing, unless otherwise ordered.) (Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Lopez v. City of Woodland et al.**
Case No. CV2025-0215

Hearing Date: **March 25, 2026** **Department Eleven** **9:00 a.m.**

Motion for order nunc pro tunc:

Plaintiff Niko Lopez' motion for order nunc pro tunc to set amended complaint filing date as July 14, 2025, is **GRANTED**. The Court finds that the complaint presented for filing on July 14, 2025, was presented to the clerk for filing in a form that complied with state law and should not have been rejected. (Cal. Rules of Court, rules 2.100 – 2.110; *Carlson v. Department of Fish & Game* (1998) 68 Cal.App.4th 1268, 127; Kim Decl., ¶¶ 2, 4, 5, Exhibits A – C.)

The effective date of the filing of plaintiff's first amended complaint **SHALL** be **July 14, 2025**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Demurrer:

Given the Court's ruling on plaintiff Niko Lopez' motion for order nunc pro tunc to set amended complaint filing date as July 14, 2025, defendant City of Woodland's demurrer to plaintiff's first amended complaint is **OVERRULED** as moot.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.